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कर्मचारी भविष्य निधि संगठन
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)
EMPLOYEES' PROVIDENT FUND ORGANISATION
(Ministry of Labour & Employment, Govt. of India)
मुख्य कार्यालय / Head Office
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LC-9(12)2013/CPFC Ref.

Date: 3.2.2017

To

All Addl. Central P.F Commissioner(Head Office)
All Addl. Central P.F Commissioner(Zone)
All Regional P.F Commissioners
Regional Offices/Sub-Regional Offices

Sub:- Proper handling of legal cases in field offices-Regarding

Ref:- This office circular No. LC-9(12)2013/CPFC Ref./Pt/3865 dated 16.05.2014

Sir,

Please refer to this office circular No. LC-9(12)2013/CPFCRef./Pt/3865 dated 16.05.2014 vide which comprehensive guidelines on proper handling of legal cases in field offices of EPFO were issued.

2. Attention is drawn towards Para 4(c) of circular regarding preparation and vetting of counter affidavit and responsibility of concerned officers/officials at field office as well as at Head office. The same is quoted as under :-

"It has been the experience that the field offices do not observe due diligence with regard to the preparation, vetting and timely filing of the counter affidavits. There is a tendency to distance from the ownership of the case by the concerned divisions within the office with a feeling that all the responsibility lies with the legal cell only. This contention needs to be changed. The branch officer of the Regional/Sub-Regional office, APFC or RPFC-II of the work area as the case may be, to whom the case pertains to, shall bear the overall responsibility of preparation of the counter affidavit, its timely filing and adequate follow up till its conclusion. The counter reply shall be vetted and filed with the approval of RPFC-In-Charge of Regional or Sub-Regional office as the case may be. For instance, in case of Regional Office, if the counter reply of the case relates to Compliance and Recovery, the same shall be prepared by the APFC (Compliance) concerned, vetted by RPFC-II(Compliance and Recovery) and filed with the approval of RPFC-In-Charge of Regional Office. Similarly, if the counter reply of the case relates to Finance and Account or Pension, the same shall be prepared by APFC (Accounts) or APFC (Pension) and vetted by RPFC-II (F&A) or RPFC-II (Pension), as the case may

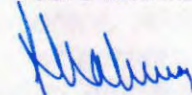
be. In case of Sub Regional Office, RPFC-In-Charge shall personally vet and file all counter replies under his/her own sign and seal. This responsibility shall not be further delegated down below. Similarly, in case of Head Office, the counter replies shall be prepared by the concerned Section Officer or RPFC-II concerned, vetted by the concerned RPFC-I and Additional CPFC of the Division. For instance, RPFC-I (F&A) shall vet the counter reply related to Finance matters, RPFC-I (Vigilance) for Vigilance matters, RPFC-I (HRM) for the HR matters, RPFC-I (HRD) for HRD matters, RPFC-I (Exemption) for Exemption matters, RPFC-I (Compliance) for Compliance matters, RPFC-I (IS) for IS matters, RPFC/AE/JE/CE for PFD related matter and so on. It has to be ensured that the counter replies are placed before CPFC for perusal and approval wherever a policy decision or a substantial question of law is involved. The involvement of senior level officers is required depending on gravity of cases like contempt, writ, SLP, personal appearance etc. where approval of Head Office or Ministry is required."

3. However, it is being observed that the field offices as well as concerned divisions of Head office are not complying with the instructions in true spirit.

4. It is reiterated that the ownership of a judicial case involving EPFO and the primary responsibility to successfully prosecute it in order to defend the Central Board, squarely lies with the RPFC-In-charge of a field office and RPFC-In-charge/Addl. CPFC of concerned division at Head office. The role of legal cell in the field offices of EPFO as well as at Head office is basically of co-ordination between a concerned divisions (with reference to a specific legal case) and the Court of law through empanelled advocates.

5. It is therefore, reiterated that procedure as explained in circular dated 16.5.2014 specifying the responsibility level of the concerned officers/officials at field office and at Head office should be strictly followed. Further, all OICs are directed to ensure that in no legal case, CPFC/Head Office is unnecessarily involved and that, no commitment or submission on behalf of CPFC or Head Office is made without prior approval of the CPFC.

Yours faithfully,



(Dr S K Thakur)

Additional Central P F. Commissioner-I(Legal)